

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
JONATHAN JUSTINIANO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ISMAEL ARRIAZA, Shield No. 22156, NYPD POLICE
OFFICER ROLANDO LLOVERA, Shield No. 02803,
NYPD POLICE LIEUTENANT AHMED OTHMAN, Tax
Reg. No. 937230, and NYPD POLICE OFFICERS JOHN
DOES NUMBERS ONE THROUGH TEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

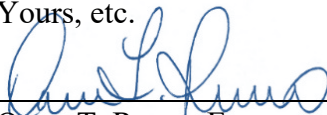
Plaintiff designates New York
County as the place of trial.

To the above-named defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 12, 2023

Yours, etc.



Omar T. Russo, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NEW YORK CITY POLICE OFFICER ISMAEL ARRIAZA, Shield No. 22156, NYPD 30th Precinct; 451 West 151st Street, New York, New York 10031

NEW YORK CITY POLICE OFFICER ROLANDO LLOVERA, Shield No. 02803, NYPD 30th Precinct; 451 West 151st Street, New York, New York 10031

NEW YORK CITY POLICE LIEUTENANT AHMED OTHMAN, Tax Reg. No. 937230 NYPD 30th Precinct; 451 West 151st Street, New York, New York 10031

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

JONATHAN JUSTINIANO,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ISMAEL ARRIAZA, Shield No. 22156, NYPD POLICE
OFFICER ROLANDO LLOVERA, Shield No. 02803,
NYPD POLICE LIEUTENANT AHMED OTHMAN, and
NYPD POLICE OFFICERS JOHN DOES NUMBERS
ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff, JONATHAN JUSTINIANO, by his attorneys, Shulman-Hill, PLLC, as and for
his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violations of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections
1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the
United States Constitution, and the common law and laws of the State of New York. On September
30, 2022, at approximately 6:30 p.m., Plaintiff Jonathan Justiniano, while lawfully at or near 144th
Street and Convent Avenue, County of New York, State of New York, was subject to an unlawful
stop, detention, and arrest by the defendant police officers. Further, Plaintiff was subjected to
excessive force, assault, and battery when defendant officers struck him with a police vehicle,
expelling him from his moped causing multiple serious physical injuries. In addition, Plaintiff was
subjected to over 24 hours of unlawful confinement at the NYPD 30th Precinct and New York
County Central Bookings. All charges made against the plaintiff were dismissed and sealed in their
entirety on or about January 17, 2023. Plaintiff was deprived of his rights under 2021 N.Y.C. Local
Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law, and statutory
rights when the individual defendants unlawfully stopped, detained, passed along false accusations
to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the
Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and
the laws of the State of New York.

PARTIES

2. Plaintiff Jonathan Justiniano is a resident of the state of New York.
3. NYPD Police Officer Ismael Arriaza, Shield No. 22156, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD Police Officer Ismael Arriaza, Shield No. 22156, is being sued in his individual and official capacity.
5. Upon information and belief, NYPD Police Officer Ismael Arriaza, Shield No. 22156, was at all times relevant herein assigned to the NYPD 30th Precinct.
6. NYPD Police Officer Rolando Llovera, Shield No. 02803, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD Police Officer Rolando Llovera, Shield No. 02803, is being sued in his individual and official capacity.
8. Upon information and belief, NYPD Police Officer Rolando Llovera, Shield No. 02803, was at all times relevant herein assigned to the NYPD 30th Precinct.
9. NYPD Police Lieutenant Ahmed Othman, Tax Reg. No. 937230 was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
10. NYPD Police Lieutenant Ahmed Othman, Tax Reg. No. 937230, is being sued in his individual and official capacity.
11. Upon information and belief, NYPD Police Lieutenant Ahmed Othman, Tax Reg. No. 937230, was at all times relevant herein assigned to the NYPD 30th Precinct.
12. NYPD Police Officers John Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
13. Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.
14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on June 1, 2023.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On September 30, 2022, at approximately 6:30 p.m., Plaintiff was lawfully present in the vicinity of 144th Street and Convent Avenue, County of New York, New York, when the defendant officers unlawfully descended upon, struck, stopped, detained, searched, and arrested Plaintiff without probable cause or legal justification.

22. At the aforementioned place and time, Plaintiff was riding his moped headed towards his home from a friend's house.

23. Plaintiff was not in violation of any rules of the road or otherwise.

24. Plaintiff observed a vehicle traveling closely to him and moved to the far right lane to avoid a collision; unbeknownst to the Plaintiff the vehicle was an unmarked police vehicle.

25. Those who would only later be discovered to be the defendant officers never employed any lights or sirens to indicate that they were officers or that they wanted Plaintiff's attention.

26. Plaintiff was then struck from behind by the unmarked vehicle, expelling him from his scooter and causing severe injuries.

27. As Plaintiff was on the ground in excruciating pain and barely conscious, approximately five (5) defendant officers surrounded him and began grabbing him and interrogating him about the ownership of his scooter.

28. Defendant officers then searched Plaintiff, placed him in unreasonable tight metal handcuffs causing pain, lifted him causing worsened pain, and placed him in the back of an NYPD vehicle while he was still bleeding and disoriented.

29. Defendant officers then told Plaintiff that there were “a lot of scooter thefts” in that area, as justification for their barbaric actions.

30. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

31. At no point did defendant police officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

32. Plaintiff did not resist arrest.

33. Nevertheless, Plaintiff was unlawfully arrested, handcuffed, and subjected to unlawful pat-down search by the defendant officers without legal justification or probable cause.

34. Plaintiff was thereafter transported to the 30th Precinct against his will.

35. Again at the precinct Plaintiff would be unlawfully searched, fingerprinted, photographed, and placed in a holding cell.

36. Still in excruciating pain from being struck by the police vehicle, Plaintiff requested medical attention, and was finally transported to Presbyterian Hospital for treatment.

37. After being examined and treated, Plaintiff was transported back to the precinct.

38. Plaintiff's wife reported to the 30th Precinct with documentation proving ownership of the scooter.

39. Nevertheless, Plaintiff was transported to Central Booking, where he was again processed and detained in a holding cell.

40. While Plaintiff was in custody, the defendant police officers provided the New York County District Attorney's Office with the false, misleading, and/or incomplete

information that Plaintiff had committed crimes, specifically, that Plaintiff was engaged in Criminal Possession of a Weapon, Reckless Endangerment, and other related charges.

41. The following day, the plaintiff was arraigned in criminal court, charged with crimes he did not commit, and released on his own recognizance.

42. On or about January 17, 2023, all charges made against the plaintiff were dismissed and sealed in their entirety.

43. As a result of this incident, Plaintiff sustained serious injuries, including two (2) fractured ribs, torn left shoulder tissue, a torn left knee ligament, a concussion, and eight (8) herniated discs in his spine. Plaintiff has to walk with a cane and cannot lift his arms without experiencing excruciating pain. Plaintiff has had surgery on his left shoulder, still requires surgery for his left knee and back, and continues to receive physical therapy three (3) times per week.

44. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

45. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiff to sustain mental and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

47. Defendants owed a duty of care to Plaintiff.

48. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things, striking him with a police vehicle.

49. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

50. All of the foregoing occurred without any fault or provocation by Plaintiff.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SECOND CAUSE OF ACTION
Unlawful Stop, Question, and Search

54. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

55. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

56. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

57. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

60. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

61. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

62. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION
False Arrest/False Imprisonment

63. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

64. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

65. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION
**Violation of Plaintiff's Fourth and Fourteenth Amendment Rights:
Excessive Force**

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

70. The use of excessive force by defendants by, amongst other things, striking him with a police vehicle, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

72. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

73. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

74. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

75. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

79. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

80. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

81. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION**Failure to Intervene**

82. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

83. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

84. Defendants failed to intervene to prevent the unlawful conduct described herein.

85. As a result of the foregoing, Plaintiff suffered permanent injury, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

86. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION**Violation of Fourth and Fourteenth Amendment Rights:****Denial of Right to Fair Trial/Due Process**

90. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

91. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

92. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

93. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

94. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

95. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

TENTH CAUSE OF ACTION
42 U.S.C. § 1983 and State Law
Malicious Prosecution

99. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

100. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution and the laws of the State of New York.

101. Defendants commenced and continued criminal proceedings against Plaintiff.

102. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

103. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION
Assault

104. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if

the same were fully set forth at length herein.

105. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

106. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Battery

110. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

111. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck the plaintiff with a police vehicle, brutally effecting an arrest without his consent and with the intention of causing harmful and/offensive bodily contact to the Plaintiff and caused such battery.

112. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

114. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

115. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION**Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

116. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

117. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

118. The acts of the defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

119. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 24 hours in total.

120. By reason of the acts and omissions by defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION**Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

121. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

122. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

123. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

124. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

125. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

126. By reason of the acts and omissions by defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

126. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

127. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

128. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

129. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

130. The acts of defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

131. The defendant officers, while in uniform, unlawfully seized, frisked, and searched Plaintiff, before detaining and further causing his detention for approximately 24 hours in total.

132. By reason of the acts and omissions of defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

133. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

134. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

135. The City of New York, as the employer of the covered individual defendant officers, is liable to Plaintiff for the wrongdoing of the covered individual defendant officers.

136. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

137. The defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

138. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

139. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

140. By reason of the acts and omissions of defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

SEVENTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

127. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

128. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

129. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered mental, economic, and emotional injuries, as well as a deprivation of liberty.

130. As a result of the above tortious conduct, Plaintiff was caused to suffer mental, economic, and emotional injuries, as well as a deprivation of liberty.

131. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the individual defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

141. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff, JONATHAN JUSTINIANO, demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*

Dated: New York, New York
September 12, 2023

Shulman & Hill, PLLC

By: 
Omar T. Russo, Esq.
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NEW YORK CITY POLICE OFFICER ISMAEL ARRIAZA, Shield No. 22156, NYPD 30th Precinct; 451 West 151st Street, New York, New York 10031

NEW YORK CITY POLICE OFFICER ROLANDO LLOVERA, Shield No. 02803, NYPD 30th Precinct; 451 West 151st Street, New York, New York 10031

NEW YORK CITY POLICE LIEUTENANT AHMED OTHMAN, Tax Reg. No. 937230 NYPD 30th Precinct; 451 West 151st Street, New York, New York 10031

ATTORNEY'S VERIFICATION

OMAR RUSSO, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
September 12, 2023


OMAR T. RUSSO, ESQ.